

Regan "correctly divines the intent of the Seventh Amendment." To resolve this question and the conflict between Circuits, we granted certiorari. 476 U. S. 1139 (1986). We reverse.

II

The Seventh Amendment provides that, "[i]n Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved"³ The Court has construed this language to require a jury trial on the merits in those actions that are analogous to "Suits at common law." Prior to the Amendment's adoption, a jury trial was customary in suits brought in the English *law* courts. In contrast, those actions that are analogous to 18th-century cases tried in courts of equity or admiralty do not require a jury trial. See *Parsons v. Bedford*, 3 Pet. 433 (1830). This analysis applies not only to common-law forms of action, but also to causes of action created by congressional enactment. See *Curtis v. Loether*, 415 U. S. 189, 193 (1974).

To determine whether a statutory action is more similar to cases that were tried in courts of law than to suits tried in courts of equity or admiralty, the Court must examine both the nature of the action and of the remedy sought. First, we compare the statutory action to 18th-century actions brought in the courts of England prior to the merger of the courts of law and equity. See, e. g., *Pernell v. Southall Realty*, 416 U. S. 363, 378 (1974); *Dairy Queen, Inc. v. Wood*, 369 U. S. 469, 477 (1962). Second, we examine the remedy sought and

³ Before initiating the inquiry into the applicability of the Seventh Amendment, "[w]e recognize, of course, the 'cardinal principle that this Court will first ascertain whether a construction of the statute is fairly possible by which the [constitutional] question may be avoided.'" *Curtis v. Loether*, 415 U. S. 189, 192, n. 6 (1974) (citation omitted); see also *Pernell v. Southall Realty*, 416 U. S. 363, 365 (1974). Nothing in the language of the Clean Water Act or its legislative history implies any congressional intent to grant defendants the right to a jury trial during the liability or penalty phase of the civil suit proceedings. Given this statutory silence, we must answer the constitutional question presented.